

1 ENGROSSED SENATE
2 BILL NO. 1501

By: Jech and Bullard of the
Senate

3 and

4 Moore of the House
5
6

7 An Act relating to medical marijuana bonds; amending
8 Section 2, Chapter 41, O.S.L. 2023 (63 O.S. Supp.
2025, Section 427.26), which relates to bond required
9 for land used in commercial growing operations;
10 defining term; allowing the Oklahoma Medical
Marijuana Authority to recall certain bonds;
11 requiring the Authority to provide certain notice to
certain law enforcement in certain situations;
12 requiring the Authority to keep certain bond
information for certain period of time; requiring the
Authority to promulgate certain rules; updating
13 statutory reference; and providing an effective date.
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15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY Section 2, Chapter 41, O.S.L. 2023
17 (63 O.S. Supp. 2025, Section 427.26), is amended to read as follows:

18 Section 427.26. A. For the purpose of this section,
19 "reclamation" means returning the land to a marketable condition.

20 B. It shall be unlawful for any holder of a medical marijuana
21 business license pursuant to Section 427.14 of ~~Title 63 of the~~
22 ~~Oklahoma Statutes~~ this title to engage in any commercial growing
23 operations in this state without acquiring a bond. The bond shall
24 cover that area of land within the permit area upon which the

1 business licensee will initiate and conduct commercial growing
2 operations.

3 ~~B.~~ C. Every applicant for a commercial grower license or
4 commercial grower licensee shall file with the Oklahoma Medical
5 Marijuana Authority a bond satisfactory to the Authority and in the
6 amount no less than Fifty Thousand Dollars (\$50,000.00) for each
7 license sought or held, with a surety company qualified to do
8 business in this state as a surety. The bond shall be furnished to
9 the state for the use of the state pursuant to the provisions of
10 this ~~act~~ section and Section 427.14 of this title. The bond shall
11 be conditional that the obligor will comply with the provisions of
12 this ~~act~~ section and Section 427.14 of this title including, but not
13 limited to, building codes, administrative rules, and other relevant
14 laws, and all rules and regulations made pursuant to this ~~act~~
15 section and Section 427.14 of this title and will pay all amounts of
16 money that may be due to the state during the time such bond is in
17 effect.

18 ~~C.~~ D. The Authority or the Department of Environmental Quality
19 may require a higher amount depending upon the reclamation
20 requirements of the approved application. The amount shall reflect
21 the probable difficulty of reclamation with consideration for such
22 factors including, but not limited to, topography, hydrology, and
23 revegetation potential. The amount of the bond for a commercial
24 growing operation shall be sufficient to assure the completion of

1 the reclamation plan if the work has to be performed by the
2 Authority or the Department of Environmental Quality in the event of
3 revocation of license.

4 ~~D. An appropriate agency~~ E. The Authority may recall the bond
5 if the property has been abandoned, the Authority revokes the
6 commercial growing operation's license, or in response to receiving
7 notice of a violation of any law, regulation, policy, or ordinance
8 necessitating remedial action. The bond shall be used to defray the
9 cost of restoration of the property including, but not limited to,
10 removing equipment, destruction of waste, remediation of
11 environmental hazards, prohibiting public access, addressing
12 improperly coded buildings, or determination of the final
13 disposition of any seized property.

14 ~~E. F.~~ F. A holder of a medical marijuana business license pursuant
15 to Section 427.14 of ~~Title 63 of the Oklahoma Statutes~~ this title
16 engaging in a commercial growing operation may operate without
17 obtaining a bond upon verification by the Authority that the
18 permitted land on which the licensee operates the commercial growing
19 operation has been owned by the licensee for at least a five-year
20 period prior to submission of application.

21 G. Upon the expiration of a medical marijuana business license,
22 the Authority shall provide notice to all law enforcement agencies
23 in the local jurisdiction of such expiration.
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1 H. The Authority shall keep record of all bond statuses for
2 each licensee for a period not less than two (2) years.

3 I. The Authority shall promulgate rules necessary to enact the
4 provisions of this section.

5 SECTION 2. This act shall become effective November 1, 2026.

6 Passed the Senate the 9th day of March, 2026.

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Presiding Officer of the Senate

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10 Passed the House of Representatives the ____ day of _____,
11 2026.

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Presiding Officer of the House
of Representatives

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